

b) Reliance on the professional representative

In J 7/16 the Legal Board held that, for health reasons beyond his control, the former representative had not been capable of running the case in a proper way although he had taken every effort to fulfil his duties. This finding prevented the applicant from suffering from the inappropriate procedural conduct of its former representative as it had no reason to suspect that he could not be relied on.

In T 381/93 of 12 August 1994 the board observed that the applicant was entitled to rely on his duly authorised professional representative to deal with the EPO. However, the board held that to the extent that he was on notice that a time limit had not been met and/or that instructions were required in order to meet it, an applicant had a duty to take all due care in the circumstances to meet the time limit.

In T 1954/13 the appellant (applicant) issued its US representative with an order to "stop work". It appeared to the board that the appellant could not expect that the "stop work" order would have no consequence at all, i.e. that work continued as usual. Yet, there was nothing on file which would suggest that measures had been taken by the appellant in order to somehow compensate for the issuance of the "stop work" order. If instructions had been given by the appellant to the effect that no information should be sent to it, the board found this would be an additional aspect for a finding that the appellant itself had not acted with all due care required by the circumstances.

c) Unrepresented individual applicant

In J 5/94 the Legal Board made allowance for the fact that the appellant was an individual applicant who had not appointed a representative and who was neither familiar with the requirements of the EPC nor in possession of an established office organisation attuned to ensuring that procedural deadlines were met. The board pointed out that in such a case the **same standards** of care as those required of a professional representative or the patent department of a large firm **could not be applied**. See also T 1201/10 of 28 February 2018.

At the same time, an individual applicant was also obliged to exercise due care in the course of the procedure. Accordingly, when not using the services of a professional representative, he must himself take all possible steps to ensure that he can do, properly and punctually, whatever is required during the grant procedure to prevent any loss of rights. He is not entitled either to invoke **general ignorance of the law** or to leave undone anything which may reasonably be expected of him with a view to observing time limits (J 5/94, J 27/01, J 2/02, J 6/07, T 493/08, T 555/08, J 8/09, J 7/12, J 17/16).

In T 1444/15 the board held that an applicant who employed the services of a payment service provider for monitoring the time limits for renewal fees could not be considered to be an unrepresented individual (see also T 1477/17).

In J 23/87 the Legal Board ruled that exercising due care under Art. 122 EPC 1973 meant that an applicant, when deciding whether to pursue his application, could not rely entirely

on information provided voluntarily by PCT authorities and the EPO at various stages of the procedure, and instead had to ensure that he was normally able to comply with the basic PCT and EPC 1973 time limits even if he received this information late or not at all.

In T 601/93 the appellant was not aware of the need to file a statement of grounds within the time limit. The board held that any **legal error** which might have led the appellant to believe that the requirement was not to be observed would exclude the application of due care, considering the unequivocal provision in Art. 108 EPC 1973.

With regard to re-establishment in respect of disciplinary proceedings and the European Qualifying Examination, the board ruled in D 6/82 (OJ 1983, 337) that a mistake of law, particularly one regarding the provisions on notification and calculation of time limits, did not, as a general rule, constitute grounds for re-establishment of rights. The obligation to take "all due care required by the circumstances" meant that persons engaged in proceedings before or involving the EPO had to acquaint themselves with the relevant procedural rules.

d) Choosing a sufficiently competent representative

In J 23/87 the applicant failed to furnish a translation of an international application within the prescribed time limit. The appellant, a small Japanese firm with limited financial resources, submitted that a Japanese patent attorney without special knowledge of PCT matters had been consulted, and that this attorney had misinformed the appellant. The Legal Board held that for an applicant who lacked the necessary knowledge of the PCT and the EPC procedures, it was obviously necessary to consult a competent professional representative in order to cope with the procedures involved in such a patent application. Thus, the Legal Board was not satisfied that the appellant, being completely ignorant about the special procedure to be observed in this case, had chosen a sufficiently competent professional representative and let him properly advise the appellant on the matters involved having had an opportunity to study the details concerning the present application.

5.5.2 Due care on the part of the professional representative

When an applicant is represented by a professional representative, a request for restitution in integrum cannot be acceded to unless the representative himself can show that he has taken all due care required of an applicant or proprietor by Art. 122(1) EPC (J 5/80, OJ 1981, 343). In other words, what Art. 122 EPC requires from an applicant also applies to an applicant's representative (T 1149/11).

The extensive case law on a professional representative's duty of care in **dealing with assistants** is dealt with below in this chapter III.E.5.5.4.

a) Communication between professional representatives and their clients, the EPO or other representatives

In T 112/89 the board stated that, regarding the due care required by Art. 122(1) EPC 1973, the obligations of the applicant and those of his representative were clearly distinct and that the due care to be exercised by the representative might depend on the relationship which existed between him and his client. The board noted that it was clear that both the representative and the applicant had to exercise all due care in order to observe all the time limits during patent granting procedures. In the case at issue, the board was not convinced that the duty of the representative was fully discharged when he notified his client that a time limit was to be observed and was satisfied that the client had received the notification. On the contrary, when a representative has been instructed to lodge an appeal and has not received in due time from his client the necessary additional instructions needed to discharge his duty, he should take all necessary measures to try to obtain from his client these instructions.

In T 1401/05 of 20 September 2006 the board stated that the communication between the representative and his client (applicant) had worked efficiently. The representative was therefore entitled to rely on his client's awareness of the expiry of the time limit. The representative was not required to issue a further reminder to meet his obligations of due care.

In T 1289/10 the board held that if a European representative provided a contact email address for all kinds of mail, including mail that may require immediate action by the representative, it was **essential to perform a mail check** at least at the end of each business day. Given the known problem that legitimate mail from time to time was wrongly marked as a possible threat it was evident that this check must include the quarantine area of the email system.

In T 1101/14 the board considered that the **signing of documents** was an act that required particular care on the representative's part, especially when the signature related to the last legal remedy against an adverse decision. A representative who had mistakenly signed a statement of grounds of appeal having most of its pages missing had, in the absence of special circumstances which could justify the representative's mistake, to be considered not to have taken all due care required by the circumstances.

In J 15/14 the Legal Board held that in a proper workflow between two representative's offices where one had the function to give instructions to the other, a confirmation from the other representative that a particular instruction had been received and followed was required; if no confirmation was received a follow-up e-mail should be sent in order to safeguard the rights of the client.

b) Payment of renewal fees

In J 11/06 the Legal Board held that according to the established jurisprudence of the Legal Board following decision J 27/90, even if renewal fees were paid by someone else, the appointed professional representative remained responsible in the procedure before

the EPO, and had to **take the necessary steps to ensure payment** if intended (likewise J 1/07, J 4/07, J 12/10, J 5/13).

In J 4/07 the European representative had every reason to believe that it was the appellant's intention to continue prosecution of the application in suit. Under these circumstances the Legal Board did not consider that it was sufficient for the European representative only to send a single reminder more than four months prior to the expiry of the critical term.

In J 12/10 the Legal Board confirmed that it was established jurisprudence of the boards of appeal that a representative, once appointed – even if the renewal fees were paid by someone else – remained otherwise fully responsible for the application, and that this included a continuing obligation to monitor time limits, send reminders to the applicant, etc.

In J 5/13 the Legal Board considered that the extent of the duties of the representative depended on the agreement between the representative and his client. An appointed representative whose authorisation was silent concerning the payment of the renewal fees and who had not received any funds for this purpose was **not expected to pay the fee by advancing money** on behalf of the applicant out of his own pocket (J 16/93, J 19/04, J 1/07). Instead, he retained only a **"secondary responsibility"** (see J 1/07). Thus the representative's responsibility, above all, consists in finding out what his client really intends to do with respect to payment of the renewal fees (see J 16/93). The scope of duties of a representative who retains only such a "secondary responsibility" to inform and advise his client with respect to the due date for renewal fees cannot be the same as it would be if he were responsible for the payment itself. In the case in question, the representative had fulfilled his responsibility by sending repeated letters to the responsible person within the appellant's company.

In J 19/04 the board held that the representative's conduct has to be assessed according to the extent to which he has done all that is necessary to ascertain the **client's true wishes** (see also J 1/07, T 1426/14). It is not the number of (unanswered) reminders that is decisive, but when those reminders were sent in relation to the date on which the time limit expired, how the reminders were formulated and what the representative's duties were in relation to the client.

In T 942/12 the board held that if a European representative was **expressly instructed** that he was not required to monitor the payment of renewal fees, the duty of due care did not involve that he nevertheless monitored the payment. It could not be expected that the European representative monitors renewal fee payments at his own expense.

In T 629/15, the board distinguished the facts underlying it from T 942/12, as no express instruction to not monitor the payment of fees was given. In these circumstances, the board decided that the European representative remained responsible for ensuring the payment, despite the fact that the US applicant used a US representative as well as a service firm for the payment of renewal fees.

In T 338/98 the appellant was first represented by professional representative A, but later asked him to transfer all files to a new representative B. One European patent application failed to be transmitted. Although the representatives were aware that the renewal fee was due for this application, they did not reach clear agreement about paying it, with the result that the fee was not paid and the application was deemed to be withdrawn. The board held that in these circumstances it did not appear appropriate formally to delimit the individual responsibilities of each of the representatives during a transfer of cases requiring, by its very nature, close co-operation between the persons involved and naturally leading to overlapping responsibilities. The fact that in these circumstances the representatives had been unable to reach agreement about the way to proceed and that the appellant had not been informed of the outstanding renewal fee and of the disappearance of the file in question was not an indication that all due care required by the circumstances had been taken at that moment.

In T 1426/14 the representative had been informed about the applicant's intentions to pay the renewal fee and could be sure that the applicant was aware of the running time limit. The board held that once the applicant had clearly indicated that he had taken note and that he would pay, the representative had fulfilled his obligations and the responsibility shifted to the applicant.

c) Ignorance of or erroneous interpretation of a provision of the EPC

(i) Error of law or erroneous interpretation cannot be excused

In J 3/88 the Legal Board noted that account should be taken of the fact that under Art. 134(1) EPC 1973 the contracting states had in principle confined representation of applicants before the EPO to "professional representatives" who, by virtue of their qualification should guarantee the best possible representation. The Legal Board stated that it followed that a representative could not relieve himself of responsibility for carrying out tasks which, by reason of his qualification, fell upon him personally, such as, for example, the interpretation of laws and treaties. If he delegated such tasks to an employee and if the latter made an error in the course of that work which resulted in the failure to observe a time limit, the representative could not claim that he had taken all due care required by the circumstances (see also J 33/90).

In J 31/89 the Legal Board confirmed that erroneous interpretation of the EPC owing to a mistake of law on the part of the duly authorised representative with regard to the rules for calculating time limits (in the case in point, regarding the late payment of a renewal fee together with the additional fee) could not be excused. The appellant and the representative failed to determine correctly the last date for valid payment of the renewal fee (see J 42/89, T 853/90, T 493/95, T 881/98, T 578/14).

In T 516/91 the board considered that by mistakenly believing that an extension of the time limits set by Art. 108 EPC 1973 was possible, the representative had failed to exercise due care (see also T 248/91, T 853/90, T 316/13).